

Dipak Raj v. State of U.P.

High Court of Judicature at Allahabad, Lucknow Bench · Division Bench · 20.09.2024 · Writ-C No. 8117 of 2024 ·
Disposed; reply and final assessment directed; recovery in abeyance

HEADNOTE

After a theft raid, a provisional assessment and a recovery citation, with no final assessment yet passed, the writ was disposed of by directing the consumer to reply within one week to the Executive Engineer, who must consider the reply and pass a final assessment within four weeks. The recovery certificate remains in abeyance for five weeks or until that decision, whichever is later.

FACTUAL SUMMARY

Dipak Raj's premises were raided and an FIR alleging theft of electricity was lodged on 10 August 2023. He said the licensee produced an inspection report without verifying his papers, started recovery, and never served notice under Section 3 of the U.P. Electricity Supply Code, 2005, while the Tehsil moved to realise dues though no final assessment order existed. The licensee said a provisional assessment had issued, that his mother had applied to the SDO and not the Executive Engineer, and that no final assessment had been passed.

HOLDING-UNITS

HOLDING-UNIT · U.P. Electricity Supply Code, 2005

Reply to provisional assessment and abeyance of the recovery certificate

HOLDING

The writ is disposed of by directing the petitioner to file, within one week, a reply to the provisional assessment addressed to the Executive Engineer. If that reply is filed, the Executive Engineer shall consider it and pass a final assessment order within a further four weeks. Recovery on the certificate stays in abeyance for five weeks or until that decision, whichever is later. ¶ 5

FLAG Petitioner invoked notice under 'Section 3' of the Supply Code. The Court did not construe that clause. Number left as pleaded; the operative direction is the assessment timeline and abeyance of recovery.

PRINCIPLE TAGS

provisional-assessment-reply-recovery-abeyance A reply to the provisional assessment must be put before the Executive Engineer, who is to consider it and pass a final assessment, and the recovery certificate remains in abeyance until that decision or for five weeks, whichever is later. ¶ 5

NOT DECIDED — NEGATIVE AUTHORITY

NOT DECIDED — WHETHER NOTICE UNDER SECTION 3 OF THE U.P. ELECTRICITY SUPPLY CODE, 2005 WAS REQUIRED OR SERVED

Pleaded by the petitioner; the Court did not rule on it. ¶ 3

NOT DECIDED — WHETHER THEFT WAS MADE OUT AND WHAT AMOUNT, IF ANY, IS PAYABLE

Left to the Executive Engineer's final assessment after the petitioner's reply. The recovery citation was not quashed. ¶ 4-5

